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EU Dog & Cat Alliance feedback on the welfare and traceability of dogs and cats (new rules)

The EU Dog & Cat Alliance welcomes the Commission's proposed regulation (COM(2023)770) on the welfare and traceability of dogs and cats. The legislation would mark an important step forward for standards in dog and cat welfare. However, we have outlined below how we would like to see the regulations go further to effect real change for dogs and cats.

Ban the sale of dogs and cats in pet shops

The Commission is proposing, for the first time ever, new EU rules on the welfare and traceability of dogs and cats, which are bred, kept and traded, as companion animals, for economic purposes. This is an opportunity to transform the way pets are acquired and with this in mind, a glaring omission in the proposals is a ban on the sale of dogs and cats in pet shops. The environment in pet shops is not conducive to the welfare, socialisation and habituation of puppies and kittens in the early stages of their lives. Instead, puppies and kittens should be seen in, and bought from, the place they were bred with their mother present.

We strongly believe the proposed legislation should be strengthened to include a ban on the sale of dogs and cats in pet shops.

Remove threshold for breeding establishments

As proposed, the legislation includes an exemption for those breeding from up to 3 females, with 2 litters or less per establishment and per year. We strongly believe the fundamental welfare standards set out in the regulations, for example relating to feeding, watering, housing and prohibition of painful practices, as well as the breeding limitations, should apply to anyone breeding dogs and cats.

Poor welfare standards are possible regardless of the size of a breeding establishment. Dogs and cats with exaggerated features or harmful characteristics are also bred by low volume breeders. Furthermore, as the explanatory memorandum notes, the trade in dogs and cats is very lucrative and therefore attractive to operators willing to engage in unfair or even unlawful business practices. Evidence has shown unscrupulous commercial traders posing as 'hobby' breeders; employing tactics to make it appear that they operate below registration or licensing thresholds and the pets they are selling have been responsibly bred in loving homes. Tactics include hiring rental properties to sell pets out of or using fake mums to disguise the fact puppies or kittens have been illegally imported.

We therefore strongly believe the proposed legislation should be strengthened, as a minimum, by extending the welfare requirements to anyone breeding a dog or cat. Ideally, we would also like to see all breeders notifying their activities to the competent authorities.

Strengthen microchipping and registration requirements

We welcome that the proposal will require suppliers to prove the identification of dogs and cats, and acquirers of dogs and cats will be able to verify the authenticity of the identification and registration of dogs and cats via a website connected to national databases. However, we do not think the proposals go far enough. We believe suppliers must also provide their establishment ID if relevant. Furthermore, the proposed legislation requires microchipping and registration where any supply of dogs and cats takes place, and for dogs and cats kept in establishments. We believe the regulation should be extended to include microchipping and registration of all owned dogs and cats to truly improve traceability.

As the explanatory memorandum notes, there is huge abuse of the non-commercial pet travel rules, with unscrupulous traders exploiting the rules to transport dogs commercially. As there is currently no requirement under the pet travel rules for a pet's microchip to be registered, the system is open to abuse and there is no traceability of pets travelling under these rules.

Furthermore, any pet could become part of an economic activity at some stage in their lives. Therefore, having a history of their ownership via microchip and registration is important.

To help put an end to the illegal pet trade and improve traceability, we strongly believe the microchipping and registration requirements should apply to all owned dogs and cats.

We also have concerns that the requirements for online platforms to inform acquirers how to check the identification and registration of pets will not apply to all platforms where the advertising of pets for sale takes place. The regulations refer to online platforms as defined under the Digital Services Act, which applies to very large online platforms and search engines only i.e. those with over 45 million users in the EU. There will be many platforms hosting advertisements for the sale of pets which will be outside the scope of these regulations and this is a significant loophole.

We would like to see the requirements for online platforms to inform acquirers of how to verify the identification and registration of pets apply to all platforms advertising pets for sale.

Strengthen breeding limitations on bitches, queens and stud dogs

The proposals include acceptable minimum ages for breeding bitches and queens (18 and 12 months respectively), as well as a maximum of three litters within a period of 2 years which, if reached, activates a recuperation period of 1 year.

These measures are commendable but, without instituting maximum age and lifetime litter limits, do not fully protect the health and welfare of bitches and queens, or impede inherited conditions and disorders. A litter limit is important because popular sires, or male dogs, that are used to produce large numbers of puppies, are one of the biggest contributors to a reduction in genetic diversity, an increase in inbreeding and elevated levels of genetic diseases within a breed. Our recommendations include:

- **Bitches and queens should not exceed six litters across their lifetime (with four litters being the ideal upper limit) and should not give birth past 7 years of age.**

- **Stud dogs should have matching limits on minimum age and lifetime litters sired to prevent the spread of inherited conditions and disorders.**
- **Stud dogs used for commercial breeding should also be covered by the registration elements of the draft regulation.**

The proposal does not preclude the breeding of brachycephalic dogs as long as the breeding programme 'minimise[s] the negative welfare consequences of brachycephalic traits.' This does not go far enough; we suggest adding a provision that 'no dog may be kept for breeding if it can reasonably be expected, on the basis of its genotype, phenotype or state of health that breeding from it could have a detrimental effect on its health or welfare or the health or welfare of its offspring'. Guidance should be created to clearly define and list exaggerated features which are detrimental to dog and cat welfare.

The responsibility on breeders to avoid propagating these conditions should be strengthened in the proposed regulation.

As per the Responsible Dog Breeding Guidelines, provisions should also be added to prevent the breeding or artificial insemination of bitches and queens that have previously delivered a litter via caesarean section or if it can reasonably be expected that they will require a caesarean section. Artificial insemination must also not be used to overcome problems due to the inability of the dogs to mate naturally.